

# HOUSE BILL No. 1248

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## DIGEST OF INTRODUCED BILL

**Citations Affected:** IC 5-2-27.4.

**Synopsis:** Advanced DNA testing for cold cases. Establishes a process concerning eligibility for advanced DNA testing for cold cases.

**Effective:** July 1, 2026.

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## Hamilton

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January 5, 2026, read first time and referred to Committee on Courts and Criminal Code.

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Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

## HOUSE BILL No. 1248

A BILL FOR AN ACT to amend the Indiana Code concerning state and local administration.

*Be it enacted by the General Assembly of the State of Indiana:*

1 SECTION 1. IC 5-2-27.4 IS ADDED TO THE INDIANA CODE  
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE  
3 JULY 1, 2026]:

4 **Chapter 27.4. Advanced DNA Testing for Cold Cases**

5 **Sec. 1. This chapter applies to law enforcement investigations or**  
6 **county coroner investigations concerning the following:**

7 (1) **Homicide (IC 35-42-1).**

8 (2) **A sex offense (as defined by IC 11-8-8-5.2).**

9 (3) **High risk missing persons (as defined in IC 5-2-17-1).**

10 **Sec. 2. As used in this chapter, "advanced DNA testing"**  
11 **includes:**

12 (1) **DNA forensics;**

13 (2) **DNA analytics; or**

14 (3) **genetic genealogy.**

15 **Sec. 3. As used in this chapter, "cold case" means either:**

16 (1) **a law enforcement investigation that:**

17 (A) **has been open for more than five (5) years; and**



- 1 (B) has no pending charges; or
- 2 (2) a county coroner investigation concerning the
- 3 identification of unknown victims.

4 Sec. 4. As used in this chapter, "DNA profile" has the meaning

5 set forth in IC 10-13-6-4.

6 Sec. 5. As used in this chapter, "eligible family member" means:

- 7 (1) an individual related to the victim by blood, half-blood,
- 8 adoption, marriage, or remarriage, including:
- 9 (A) a spouse;
- 10 (B) a parent or stepparent;
- 11 (C) a child or stepchild;
- 12 (D) a grandchild or stepgrandchild;
- 13 (E) a grandparent or stepgrandparent;
- 14 (F) a brother, sister, stepbrother, or stepsister;
- 15 (G) a niece or nephew;
- 16 (H) an aunt or uncle;
- 17 (I) a daughter-in-law or son-in-law;
- 18 (J) a mother-in-law or father-in-law; or
- 19 (K) a first cousin; or

- 20 (2) an individual who cohabits or formerly cohabited with the
- 21 victim.

22 Sec. 6. As used in this chapter, "law enforcement agency" has

23 the meaning set forth in IC 35-47-15-2.

24 Sec. 7. As used in this chapter, "testing laboratory" means a

25 laboratory that:

- 26 (1) conducts advanced DNA testing; and
- 27 (2) adheres to the standards described in IC 10-13-6-14.

28 Sec. 8. As used in this chapter, "victim" means:

- 29 (1) a person who has suffered direct harm as a result of a
- 30 crime; or
- 31 (2) a high risk missing person (as defined in IC 5-2-17-1).

32 Sec. 9. The following individuals may submit a request to Crime

33 Stoppers of Central Indiana to determine eligibility for advanced

34 DNA testing:

- 35 (1) The victim of a cold case.
- 36 (2) An eligible family member of a cold case victim.
- 37 (3) A county coroner.

38 Sec. 10. Crime Stoppers of Central Indiana shall determine

39 eligibility for advanced DNA testing based on the following:

- 40 (1) The order in which the request is received.
- 41 (2) The date of the crime.
- 42 (3) The availability of funds.



1           (4) Any other relevant criteria as determined by Crime  
2           Stoppers of Central Indiana.

3           Sec. 11. Upon a determination of eligibility under section 10 of  
4           this chapter, Crime Stoppers of Central Indiana shall notify the  
5           investigating law enforcement agency of the determination of  
6           eligibility.

7           Sec. 12. Upon notice of eligibility under section 11 of this  
8           chapter, the investigating law enforcement agency and a testing  
9           laboratory shall collaborate to determine:

10           (1) the amount of DNA evidence available for testing; and

11           (2) the most appropriate advanced DNA testing options.

12           Sec. 13. A testing laboratory that conducts advanced DNA  
13           testing shall collect, preserve, and maintain the appropriate chain  
14           of custody of any evidence.

15           Sec. 14. The investigating law enforcement agency shall  
16           transmit any information concerning a DNA profile to the state  
17           police department for inclusion in the Indiana DNA data base and  
18           the combined DNA index system (as defined in IC 10-13-6-1).

19           Sec. 15. Nothing in this chapter shall prohibit a law enforcement  
20           agency from transferring DNA evidence to a testing laboratory for  
21           advanced DNA testing at the law enforcement agency's own  
22           expense.

